

Calendar Lines # 5-7
Case Name Luele Kifle vs El Camino Hospital et al
Case No. 25CV482233
Demurrer (Line # 5); Motion Strike (Line # 6); Joinder (Line # 7) Before the court are three motions: (1) defendant Johnson Kai Kwan, M.D.’s demurrer to plaintiff’s First Amended Complaint; (2) defendant Johnson Kai Kwan, M.D.’s motion to strike portions of plaintiff’s First Amended Complaint; and (3) defendants El Camino Hospital and El Camino Healthcare District’s joinder in demurrer of Johnson Kai Kwan, M.D. to Plaintiff’s First Amended Complaint. The Background portion below in section I applies to all three motions. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. I. BACKGROUND On December 17, 2025, plaintiff Luele Kifle (“Kifle”), a self-represented litigant¹, commenced this action by filing a 26-page complaint against defendants El Camino Hospital (“Hospital”), El Camino Healthcare District (“District”), and Johnson Kai Kwan, M.D. (erroneously sued as Johnson Kai Yi Kwan; hereafter, “Dr. Kwan”) asserting causes of action for: (1) Professional Negligence (Medical Malpractice) (2) Falsification of Medical Records/ Fraudulent Misrepresentation (3) General Negligence (4) Negligent Hiring, Training, Supervision, and Retention (5) Rehabilitation Act §504 (29 U.S.C. §794) (6) California Disabled Persons Act (Civ. Code §§54 – 55.32) (7) Unruh Civil Rights Act (Civ. Code §§51 et. seq.) (8) California Government Code §11135 (9) Title VI - Civil Rights Act of 1964 (42 U.S.C. §2000d) (10) Intentional Discrimination Based on Race and Disability (11) Violation of Patients’ Rights (22 CCR §70707; Health & Safety Code) (12) ADA Title III – Public Accommodations (42 U.S.C. §§12182, 12205) (13) Negligent Infliction of Emotional Distress (14) Intentional Infliction of Emotional Distress (15) Unfair Competition Law (Bus. & Prof. Code §17200) (16) Punitive Damages In the original complaint, plaintiff Kifle alleged that he lives with facioscapulohumeral muscular dystrophy (“FSHD”), a permanent neuromuscular disability requiring periodic urgent and emergency care. (Complaint, page 3, lines 20 – 21). On June 1, 2024, plaintiff Kifle’s father drove plaintiff Kifle to defendant Hospital for excruciating neuropathic pain radiating from his left shoulder through the arm/ hand. (Complaint, page 4, lines 5 – 6). According to plaintiff Kifle, defendant Hospital and defendant Dr. Kwan failed to perform a meaningful medical and neurological

¹ Although a judge should ensure that self-represented litigants are not being misled or unfairly treated (see *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284), self-represented litigants are not entitled to special treatment with regard to the Rules of Court or Code of Civil Procedure. “[W]e cannot disregard the applicable principles of law and accord defendant any special treatment because he instead elected to proceed in propria persona. [Citations.]” (*Stein v. Hassen* (1973) 34 Cal. App. 3d 294, 303). “A litigant has a right to act as his own attorney [citation] ‘but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts.’” (*Lombardi v. Citizens Nat’l Trust & Sav. Bank* (1955) 137 Cal.App.2d 206, 208-209).

examination, failed to properly assess acute symptoms, and prematurely discharged plaintiff Kifle from the emergency department. (Complaint, page 2, lines 2 – 5).

Defendants materially altered plaintiff Kifle’s medical record and created a false clinical narrative relied upon by future providers. (Complaint, page 2, lines 8 – 10).

Defendants denied plaintiff Kifle full and equal access to emergency medical services by failing to reasonably modify standard emergency department practices for a known disability and by treating plaintiff Kifle differently based on his race. (Complaint, page 2, lines 13 – 17, and page 4, lines 22 – 24).

Defendant Hospital and defendant District, a public entity that oversees and owns hospital operations within the District, ratified the aforementioned unlawful conduct. (Complaint, page 2, lines 20 – 23).

On February 10, 2026, defendant Dr. Kwan filed a demurrer to plaintiff Kifle’s complaint and a motion to strike portions of plaintiff Kifle’s complaint.

On April 13, 2026, the Honorable Jose Franco issued an order sustaining, in part, defendant Dr. Kwan’s demurrer and granting, in part, defendant Dr. Kwan’s motion to strike portions of plaintiff Kifle’s complaint. In particular, the court sustained, without leave to amend, plaintiff Kifle’s first (professional negligence), eleventh (violation of patients’ rights), thirteenth (negligent infliction of emotional distress), and sixteenth (punitive damages) causes of action. The court sustained, with leave to amend, defendant Dr. Kwan’s demurrer to the second (fraudulent misrepresentation), third (general negligence), and sixth (California Disabled Persons Act) causes of action. Judge Franco overruled defendant Dr. Kwan’s demurrer to the sixth (violation of the Unruh Civil Rights Act), tenth (intentional discrimination based on race and disability), and fourteenth (intentional infliction of emotional distress) causes of action.

On April 30, 2026, plaintiff Kifle filed the now operative **346-page** First Amended Complaint (“FAC”). As against defendant Dr. Kwan, plaintiff Kifle’s FAC asserts the following causes of action:

- (1) General Negligence Based on Non-PNMM Duties
- (2) Fraud/ Intentional Misrepresentation
- (3) Fraudulent Concealment
- (4) Constructive Fraud
- (5) Negligent Misrepresentation
- (6) Unruh Civil Rights Act, Civil Code sections 51 and 52
- (7) Disabled Persons Act, Civil Code sections 54, 54.1, and 54.3
- (8) Intentional Infliction of Emotional Distress

On May 18, 2026, defendant Dr. Kwan filed two of the three motions now before the court, a demurrer to plaintiff Kifle’s FAC and a motion to strike portions of plaintiff Kifle’s FAC.

On May 20, 2026, defendants Hospital and District filed a joinder in defendant Dr. Kwan’s demurrer to plaintiff Kifle’s FAC.

II. LEGAL STANDARD

A. DEMURRER

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests

whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

B. MOTION TO STRIKE

Under Code of Civil Procedure section 435, “Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof.” (Code Civ. Proc., § 435, subd. (b)(1)). Code of Civil Procedure section 436 provides:

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(Code Civ. Proc., § 436). In ruling on a motion to strike, the court must assume the truth of the properly pleaded facts in the complaint or other pleading. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63).

LINE # 5

III. DEFENDANT DR. KWAN’S DEMURRER TO PLAINTIFF KIFLE’S FAC IS SUSTAINED, IN PART, AND OVERRULED, IN PART.

A. GENERAL NEGLIGENCE

1. Statute of Limitations

A court may sustain a demurrer on the ground of failure to state sufficient facts if “the complaint shows on its face the statute [of limitations] bars the action.” (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1315 (*E-Fab*)). A demurrer is not sustainable on statute of limitations grounds if there is only a possibility that the cause of action is time-barred; the defense must be clearly and affirmatively apparent from the allegations of the pleading [and matters of which the court may properly take judicial notice]. (*Id.*, at pp. 1315-1316). When evaluating whether a claim is time-barred, the court must determine: (1) which statute of limitations applies, and (2) when the claim accrued. (*E-Fab, supra*, 153 Cal.App.4th at p. 1316).

Although dubbed a claim for general negligence, defendant Dr. Kwan contends this first cause of action is nevertheless a claim for professional negligence and thus barred by the statute of limitations found at Code of Civil Procedure section 340.5, which states that “In an action for injury or death against a health care provider based upon such person’s alleged professional negligence, the time for commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the exercise of reasonable diligence should have discovered, the injury, whichever comes first.”

[W]hen a plaintiff asserts a claim against a health care provider on a legal theory other than professional negligence, courts must determine whether the claim is nonetheless based on the health care provider's professional negligence, which would require application of MICRA. [Citations.] To make that determination, courts must examine not only the legal theory alleged, but also the nature of the health care provider's alleged conduct and the legislative history of the MICRA provision at issue. [Citations]. When, as here, the question presented concerns which limitations period applies, courts

also must focus on the nature or gravamen of the claim, not the label or form of action the plaintiff selects. [Citations]. (*Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 347 (*Larson*); see also *Smith v. Ben Bennett, Inc.* (2005) 133 Cal.App.4th 1507, 1514—“Thus, when a cause of action is asserted against a health care provider on a legal theory other than medical malpractice, the courts must determine whether it is nevertheless based on the ‘professional negligence’ of the health care provider so as to trigger MICRA.”).

“Professional negligence” means ***a negligent act or omission to act by a health care provider in the rendering of professional services***, which act or omission is the proximate cause of a personal injury or wrongful death, provided that such services are within the scope of services for which the provider is licensed and which are not within any restriction imposed by the licensing agency or licensed hospital. (Code Civ. Proc., §340.5, subd. (2); emphasis added).

Defendant Dr. Kwan directs the court’s attention to page 289 of plaintiff Kifle’s FAC wherein plaintiff Kifle alleges, “Dr. Kwan owed Plaintiff a duty to use ordinary care in the handling, documentation, characterization, and preservation of the June 1, 2024 encounter,” but that Dr. Kwan “breached his duty by creating, adopting, completing, preserving, or allowing to stand an official record that was false, misleading, incomplete, stigmatizing, or credibility-damaging.”

An action for damages arises out of the professional negligence of a health care provider if the injury is directly related to the professional services provided by the health care provider. (*Id.* at pp. 191-192). ***The test of whether a health care provider's negligence constitutes professional negligence is whether the negligence occurred in rendering services for which the health care provider is licensed.*** (*Murillo v. Good Samaritan Hospital* (1979) 99 Cal. App. 3d 50, 57 [160 Cal. Rptr. 33]). . .

To find whether an action arises out of the professional negligence of the health care provider, the "allegations that identify the nature and cause of a plaintiff's injury must be examined to determine whether each is directly related to the manner in which professional services were provided." (*Central Pathology, supra*, 3 Cal. 4th at p. 192). (*Williams v. Superior Court* (1994) 30 Cal.App.4th 318, 324-325).

Defendant Dr. Kwan contends the purported negligence alleged here occurred in the “rendering services for which [Dr. Kwan] is licensed,” i.e., the documenting of an ED encounter. The court would agree with defendant Dr. Kwan that charting a patient’s medical record is directly related to the manner in which the professional services of a health care professional are provided.

In opposition, plaintiff Kifle suggest that since the negligence does not relate to a diagnosis, or testing, prescribing medication, or making a decision to discharge, then the medical record-related negligence is ordinary, not professional. In the court’s opinion, charting a medical record necessarily occurs in the rendering of professional services. The rendering of medical services is not limited to diagnosis, or testing, prescribing medication, or making a decision to discharge.

As the court previously opined, plaintiff Kifle was immediately aware [on June 1, 2024] that he received inadequate care. That plaintiff Kifle did not learn of falsified medical records until later does not save his claim. Plaintiff Kifle suspected wrongdoing on June 1, 2024 and, consequently, had until June 1, 2025 to assert this claim. Since plaintiff Kifle did not do so until filing this complaint on December 17, 2025, plaintiff Kifle’s first cause of action is barred.

Accordingly, defendant Dr. Kwan’s demurrer to the first cause of action of plaintiff Kifle’s FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for

general negligence, i.e., the cause of action is barred by the applicable statute of limitations, is SUSTAINED WITHOUT LEAVE TO AMEND.

B. B. FRAUD/ INTENTIONAL MISREPRESENTATION

As with the general negligence cause of action, defendant Dr. Kwan demurs to plaintiff Kifle's second cause of action for fraud/ intentional misrepresentation by arguing that, despite the label, it is also a disguised claim for professional negligence and barred by the one-year statute of limitations.

In addition to *Larson*, defendant Dr. Kwan cites *Weinstock v. Eissler* (1964) 224 Cal.App.2d 212, 227 where the court wrote:

The one-year statute of limitations is applicable even where, as here, the plaintiff-patient alleges a cause of action for deceit based on the physician's false representations or fraudulent concealment of the nature and extent of the injury. Such a cause of action has always been treated as one for malpractice.

Defendant Dr. Kwan contends the court should similarly treat plaintiff Kifle's fraud cause of action as it, essentially, alleges defendant Dr. Kwan falsely represented or concealed the nature and extent of plaintiff's condition during the ED encounter on June 1, 2024.

However, *Larson* makes clear that claims for intentional misconduct do not come within MICRA. Thus, where the allegations of intentional misconduct are part of "some collateral course of conduct pursued for [defendant's] own gain or gratification," allege defendant acted or had reason to "intentionally injure" plaintiff, or that defendant "deliberately deviated from the consent [plaintiff] provided," then they are not treated as disguised claims of professional negligence. (*Larson, supra*, 230 Cal.App.4th at p. 352).

There are no such allegations found in plaintiff Kifle's second cause of action for fraud. Apart from remarking that defendant Dr. Kwan's argument does not "support dismissal at the pleading stage," plaintiff Kifle offers no argument, explanation, or legal authority in opposition to demonstrate why this second cause of action should not be treated as a disguised claim for professional negligence and, like the first cause of action, barred by the statute of limitations.

Accordingly, defendant Dr. Kwan's demurrer to the second cause of action for fraud/ intentional misrepresentation of plaintiff Kifle's FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for fraud/ intentional misrepresentation, i.e., the cause of action is barred by the applicable statute of limitations, is SUSTAINED WITHOUT LEAVE TO AMEND.

C. FRAUDULENT CONCEALMENT/ CONSTRUCTIVE FRAUD/ NEGLIGENT MISREPRESENTATION

As to plaintiff Kifle's third cause of action for fraudulent concealment; fourth cause of action for constructive fraud; and fifth cause of action for negligence misrepresentation, the motion to strike are GRANTED. See discussion below with regard to Defendant Dr. Kwan's motion to strike in section V.

D. UNRUH CIVIL RIGHTS ACT

The Unruh Civil Rights Act states that "[a]ll persons within the jurisdiction of this state are free and equal and no matter what their. . . race, color. . . [or] national origin. . . are entitled to the full and equal accommodations, advantages, facilities, privileges or services in all business establishments of every kind whatsoever." (Civ. Code,

§51). A plaintiff may enforce his or her rights under the Unruh Civil Rights Act by bringing an action for damages. (Civ. Code, §52, subd. (a); see also CACI, No. 3060).

“The Unruh Act was enacted to ‘create and preserve a nondiscriminatory environment in California **business establishments** by “banishing” or “eradicating” arbitrary, invidious discrimination by such establishments.’ ” (*Flowers v. Prasad* (2015) 238 Cal.App.4th 930, 937; emphasis added). “A plaintiff can recover under the Unruh Civil Rights Act on two alternate theories: (1) a violation of the ADA [citation]; or (2) denial of access to a business establishment based on intentional discrimination.” (*Martin v. Thi E-Commerce, LLC* (2023) 95 Cal.App.5th 521, 527).

Defendant Dr. Kwan demurs by arguing that he, as an individual, cannot be liable for an Unruh Act violation as he is not and cannot be considered a business establishment. “To state a claim under the Unruh Civil Rights Act, a plaintiff must allege the defendant is a business establishment that intentionally discriminates against and/or denies plaintiff full and equal treatment of a service, advantage, or accommodation based on plaintiff’s protected status.” (*Liapes v. Facebook, Inc.* (2023) 95 Cal.App.5th 910, 922).

In opposition, plaintiff Kifle notes that the court previously overruled defendant Dr. Kwan’s demurrer to this cause of action and defendant Dr. Kwan is now asking the court to “reach a different result on a claim the Court already held sufficient.” Having reviewed the earlier ruling, it appears defendant Dr. Kwan is demurring on a ground not raised or argued in the prior demurrer. (*Pavicich v. Santucci* (2000) 85 Cal.App.4th 382, 389—“Santucci was entirely within his rights to demur to the fifth cause of action of the first amended complaint and amended cross-complaint notwithstanding his prior unsuccessful efforts to demur to the fifth cause of action of the original complaint and cross-complaint.”). Plaintiff Kifle offers no substantive opposition on the merits of Dr. Kwan’s argument.

Accordingly, defendant Dr. Kwan’s demurrer to the sixth cause of action for Unruh Civil Rights Act of plaintiff Kifle’s FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for violation of the Unruh Civil Rights Act is SUSTAINED with 10 days’ leave to amend.

E. SEVENTH CAUSE OF ACTION: CIVIL CODE SECTIONS 54 – 54.3

The seventh cause of action, plaintiff Kifle alleges a violation of the California Disabled Persons Act (“DPA”), Civil Code sections 54, 54.1, and 54.3.

“[Where] recovery is based on a statutory cause of action, the plaintiff must set forth facts in his [or her] complaint sufficiently detailed and specific to support an inference that each of the statutory elements of liability is satisfied. General allegations are regarded as inadequate. [Citations.]” (*Mittenhuber v. City of Redondo Beach* (1983) 142 Cal.App.3d 1, 5).

Civil Code sections 54, 54.1 and 54.3 state, respectively and in relevant part:

- (a) Individuals with disabilities or medical conditions have the same right as the general public to the full and free use of the streets, highways, sidewalks, walkways, public buildings, medical facilities, including hospitals, clinics, and physicians’ offices, public facilities, and other public places.
- (b) For purposes of this section:
 - (1) “Disability” means any mental or physical disability as defined in Section 12926 of the Government Code.
 - (2) “Medical condition” has the same meaning as defined in subdivision (h) of Section 12926 of the Government Code.
- (c) A violation of the right of an individual under the Americans with Disabilities Act of 1990 (Public Law 101-336) also constitutes a violation of this section.

(a)

(1) Individuals with disabilities shall be entitled to full and equal access, as other members of the general public, to accommodations, advantages, facilities, medical facilities, including hospitals, clinics, and physicians' offices, and privileges of all common carriers, airplanes, motor vehicles, railroad trains, motorbuses, streetcars, boats, or any other public conveyances or modes of transportation (whether private, public, franchised, licensed, contracted, or otherwise provided), telephone facilities, adoption agencies, private schools, hotels, lodging places, places of public accommodation, amusement, or resort, and other places to which the general public is invited, subject only to the conditions and limitations established by law, or state or federal regulation, and applicable alike to all persons.

...

(3) "Full and equal access," for purposes of this section in its application to transportation, means access that meets the standards of Titles II and III of the Americans with Disabilities Act of 1990 (Public Law 101-336) and federal regulations adopted pursuant thereto, except that, if the laws of this state prescribe higher standards, it shall mean access that meets those higher standards.

...

(d) A violation of the right of an individual under the Americans with Disabilities Act of 1990 (Public Law 101-336) also constitutes a violation of this section, and this section does not limit the access of any person in violation of that act.

Any person or persons, firm or corporation who denies or interferes with admittance to or enjoyment of the public facilities as specified in Sections 54 and 54.1 or otherwise interferes with the rights of an individual with a disability under Sections 54, 54.1 and 54.2 is liable for each offense for the actual damages and any amount as may be determined by a jury, or the court sitting without a jury, up to a maximum of three times the amount of actual damages but in no case less than one thousand dollars (\$1,000), and attorney's fees as may be determined by the court in addition thereto, suffered by any person denied any of the rights provided in Sections 54, 54.1, and 54.2. "Interfere," for purposes of this section, includes, but is not limited to, preventing or causing the prevention of a guide dog, signal dog, or service dog from carrying out its functions in assisting a disabled person.

In demurring to plaintiff Kifle's sixth cause of action, defendant Dr. Kwan cites *Urhausen v. Longs Drug Stores California, Inc.* (2007) 155 Cal.App.4th 254, 261 (*Urhausen*) where the court explained:

" 'Full and equal access' " is defined by section 54.1 to mean access that complies with the regulations developed under the federal Americans with Disabilities Act of 1990 (42 U.S.C. §§ 12111-12117), or under state statutes, if the latter impose a higher standard. (§ 54.1, subd. (a)(3)). "Access" refers not only to entry into a building but, more broadly, to the use of all facilities made available for general public use, such as restrooms, parking, and fixtures within a building. (E.g., *Gunther v. Lin* (2006) 144 Cal.App.4th 223, 231 [50 Cal. Rptr. 3d 317]; *Botosan v. Paul McNally Realty* (9th Cir. 2000) 216 F.3d 827, 835).

In the FAC, plaintiff Kifle alleges, in relevant part, that defendant Dr. Kwan denied, interfered with, or deprived plaintiff of full and equal access and "that this occurred through reduced seriousness, disability-insensitive handling, and failure to fairly receive and preserve Plaintiff's disability-linked concerns" and "continued through the official record because the record minimized, distorted, or failed to accurately preserve the disability-linked context of Plaintiff's presentation." (FAC, ¶¶273 - 274).

Dr. Kwan contends the focus of the DPA is on ensuring *physical* access and plaintiff Kifle has not alleged a denial of *physical* access to any public building or medical facility. However, Civil Code section 54.1, subdivision (a)(3), defines “full and equal access” to mean “access that meets the standards of Titles II and III of the Americans with Disabilities Act of 1990.” That would include 42 United States Code section 12182 which states, in relevant part,

No individual shall be discriminated against on the basis of disability in the full and equal enjoyment of the goods, services, facilities, privileges, advantages, or accommodations of any place of public accommodation by any person who owns, leases (or leases to), or operates a place of public accommodation.

Thus, defendant Dr. Kwan has not persuaded this court that a violation of the DPA is limited to denial of physical access. Accordingly, defendant Dr. Kwan’s demurrer to the seventh cause of action for violation of DPA, Civil Code sections 54, 54.1, and 54.3 on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for violation of the California Disabled Persons Act is **OVERRULED**.

F. INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

“The tort of intentional infliction of emotional distress is comprised of three elements: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff suffered severe or extreme emotional distress; and (3) the plaintiff’s injuries were actually and proximately caused by the defendant’s outrageous conduct.” (*Cochran v. Cochran* (1998) 65 Cal.App.4th 488, 494 (*Cochran*); see also *Ross v. Creel Printing & Publishing Co., Inc.* (2002) 100 Cal.App.4th 736, 744 – 745; see also CACI, Nos. 1600 and 1602).

Defendant Dr. Kwan argues the conduct alleged here is not extreme or outrageous as a matter of law. “There is no bright line standard for judging outrageous conduct and its generality hazards a case-by-case appraisal of conduct filtered through the prism of the appraiser’s values, sensitivity threshold, and standards of civility. The process evoked by the test appears to be more intuitive than analytical.” (*Cochran, supra*, 65 Cal.App.4th at p. 494; internal quotations omitted). “Even so, the appellate courts have affirmed orders which sustained demurrers on the ground that the defendant’s alleged conduct was not sufficiently outrageous.” (*Id.*) The *Cochran* court went on to state, “the mere fact that the actor knows that the other will regard the conduct as insulting, or will have his feelings hurt, is not enough.” (*Id.* at p. 496). “In evaluating whether the defendant’s conduct was outrageous, it is not enough that the defendant has acted with an intent which is tortious or even criminal.” (*Id.*; internal punctuation omitted).

“Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (*Christensen v. Superior Court, supra*, 54 Cal.3d at p. 903). “[M]ere insulting language, without more, ordinarily would not constitute extreme outrage” unless it is combined with “aggravated circumstances.” (*Alcorn v. Anbro Engineering, Inc.* (1970) 2 Cal.3d 493, 499 [86 Cal.Rptr. 88, 468 P.2d 216] (*Alcorn*)). But “[b]ehavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff’s interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress.” (*Agarwal v. Johnson* (1979) 25 Cal.3d 932, 946 [160 Cal. Rptr. 141, 603 P.2d 58] (*Agarwal*), disapproved on other grounds in *White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 574, fn. 4 [88 Cal. Rptr. 2d 19, 981 P.2d 944]). (*Smith v. BP Lubricants USA Inc.* (2021) 64 Cal.App.5th 138, 147 (*Smith*)).

The *Smith* court, like the *Cochran* court, recognized that:

“whether conduct qualifies as extreme and outrageous is [not] always a question for the jury. ...several courts have held that alleged conduct is not extreme and outrageous as a matter of law. (E.g., *Marsh v. Anesthesia Services Medical Group, Inc.* (2011) 200 Cal.App.4th 480, 487 [132 Cal. Rptr. 3d 660] [upholding sustaining of demurrer because plaintiff could not allege facts showing outrageous conduct]; *Lawler v. Montblanc North America, LLC* (9th Cir. 2013) 704 F.3d 1235, 1245 [affirming summary judgment on IIED claim because conduct was not outrageous as a matter of law]). That said, whether conduct is outrageous is “‘usually’ a question of fact.” (*Barker v. Fox & Associates* (2015) 240 Cal.App.4th 333, 356 [192 Cal. Rptr. 3d 511]).

...

“‘[w]here reasonable men may differ, it is for the jury, subject to the control of the court, to determine whether, in the particular case, the conduct has been sufficiently extreme and outrageous to result in liability.’ [Citations.]” (*Ibid.*). (*Smith, supra*, 64 Cal.App.5th at pp. 147-148).

Here, as with defendant Dr. Kwan’s prior demurrer, the court cannot definitively conclude, as a matter of law, that the conduct here is not extreme or outrageous as a matter of law. Although defendant Dr. Kwan focuses on the allegations related to false/ inaccurate charting, the court reads plaintiff Kifle’s eighth cause of action for intentional infliction of emotional distress to incorporate the allegations of the seventh cause of action, particularly with regard to discrimination. (FAC, ¶¶291 – 292). Consequently, defendant Dr. Kwan’s demurrer to the eighth cause of action for intentional infliction of emotional distress of plaintiff Kifle’s FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for intentional infliction of emotional distress is OVERRULED.

LINE # 7

IV. DEFENDANTS HOSPITAL AND DISTRICT’S JOINDER IN DEFENDANT DR. KWAN’S DEMURRER

Plaintiff’s FAC asserts causes of action against defendants Hospital and District different from those plaintiff Kifle asserted against defendant Dr. Kwan.

As against defendant Hospital, plaintiff Kifle’s FAC asserts the following causes of action:

- (1) General Negligence
- (2) Vicarious Liability/ Respondeat Superior/ Ostensible Agency
- (3) Fraud/ Intentional Misrepresentation
- (4) Fraudulent Concealment
- (5) Constructive Fraud
- (6) Negligent Misrepresentation
- (7) Race Discrimination, Disability Discrimination, and Intentional Discrimination in Violation of the Unruh Civil Rights Act, Civil Code §§51 and 52
- (8) Disability Discrimination, Denial of Equal Access, and Interference with Equal Services in Violation of the California Disabled Persons Act, Civil Code §§54, 54.1, and 54.3
- (9) Government Code §11135 Discrimination
- (10) Health & Safety Code §1278.5 Retaliation
- (11) Business and Professions Code §17200
- (12) Negligent Hiring, Training, Supervision, and Retention
- (13) Ratification
- (14) Intentional Infliction of Emotional Distress
- (15) Direct Record-Correction/ False-Record Maintenance Theory

As against defendant District, plaintiff Kifle’s FAC asserts the following causes of action:

- (1) General Negligence

- (2) Direct Institutional Negligence/ Failure to Oversee/ Policy Failure Based on non-PNMM [Professional Negligence Medical Malpractice] Duties
- (3) Negligent Supervision, Training, Retention, Oversight, and Compliance Failure Based on non-PNMM Duties
- (4) Ratification
- (5) Violation of Government Code Section 11135
- (6) Unruh Civil Rights Act, Civil Code Sections 51 and 52
- (7) Disabled Persons Act, Civil Code Sections 54, 54.1, and 54.3
- (8) Business and Professions Code Section 17200
- (9) Health and Safety Code Section 1317, Limited to Non-PNMM Emergency Access, Equal Treatment, Refusal, Denial, Delay, and Dignity Theories
- (10) Health and Safety Code Section 1278.5, Retaliation/ Patient-Grievance Protection
- (11) Health and Safety Code Sections 123110 and 123111/ Record Access, Correction, Amendment, Addendum, and Record Integrity
- (12) Intentional Infliction of Emotional Distress
- (13) Negligent Misrepresentation

Although different causes of action are asserted against defendants Hospital and District, there are causes of action against defendants Hospital and District which overlap those asserted against defendant Dr. Kwan. Insofar as those causes of action do overlap, the court's rulings above with regard to defendant Dr. Kwan's demurrer shall also apply to defendants Hospital and District's joinder in defendant Dr. Kwan's demurrer with one exception.

On the cause of action for violation of Unruh Civil Rights Act, defendants Hospital and District's demurrer is **OVERRULED**. Defendant Dr. Kwan's argument in support of his demurrer to the Unruh Civil Rights Act violation cause of action was that he, individually, could not be considered a business establishment. That argument does not apply to defendants Hospital and District.

LINE # 6

V. DEFENDANT DR. KWAN'S MOTION TO STRIKE PORTIONS OF PLAINTIFF KIFLE'S FAC IS GRANTED IN PART AND DENIED IN PART

A. THIRD CAUSE OF ACTION FOR FRAUDULENT CONCEALMENT; FOURTH CAUSE OF ACTION FOR CONSTRUCTIVE FRAUD; AND FIFTH CAUSE OF ACTION FOR NEGLIGENCE MISREPRESENTATION

Defendant Dr. Kwan moves to strike plaintiff Kifle's third cause of action for fraudulent concealment; fourth cause of action for constructive fraud; and fifth cause of action for negligent misrepresentations, respectively, on the ground that these causes of action are new to the FAC and go beyond the scope of permissible amendment after the court sustained defendant Dr. Kwan's demurrer to plaintiff Kifle's original complaint. As noted at the outset, the court sustained, with leave to amend, Dr. Kwan's demurrer to the second cause of action of plaintiff Kifle's original complaint for "Falsification of Medical Records/ Fraudulent Misrepresentation." In reviewing the court's prior ruling, the court sustained Dr. Kwan's demurrer to this cause of action because plaintiff had not sufficiently alleged his own reliance and had not pleaded fraud with the requisite specificity.

Following an order sustaining a demurrer or a motion for judgment on the pleadings with leave to amend, the plaintiff may amend his or her complaint only as authorized by the court's order. (*People ex rel. Dept. Pub. Wks. v. Clausen* (1967) 248 Cal.App.2d 770, 785 [57 Cal. Rptr. 227] [leave to amend complaint does not constitute leave to amend to add new defendant]). The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless

the new cause of action is within the scope of the order granting leave to amend. (See *Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, 1015 [84 Cal. Rptr. 3d 642] [acknowledging rule but finding it inapplicable where new cause of action “directly responds” to trial court’s reason for sustaining the demurrer]).(*Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023).

In ruling on the prior demurrer, the court did not authorize plaintiff Kifle to assert new causes of action. The third, fourth, and fifth causes of action now being asserted in plaintiff Kifle’s FAC are variants of fraud and do not “directly respond” to the court’s reason for sustaining the prior demurrer.

Consequently, defendant Dr. Kwan’s motion to strike the third, fourth, and fifth causes of action from plaintiff Kifle’s FAC is GRANTED.

B. PUNITIVE DAMAGES

In light of the court’s ruling above, plaintiff’s eighth (intentional infliction of emotional distress) cause of action survived defendant Dr. Kwan’s demurrer and plaintiff Kifle may pursue punitive damages in connection therewith. Consequently, defendant Dr. Kwan’s motion to strike the prayer for punitive damages against him is DENIED.

C. ATTORNEY’S FEES

Defendant Dr. Kwan moves to strike plaintiff Kifle’s prayer for attorney’s fees. Plaintiff Kifle has and continues to represent as a self-represented litigant, and has not incurred any attorney’s fees. (*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 93—even an attorney litigating in propria persona is not entitled to recover attorney’s fees he has not actually incurred).

This argument is different from the one raised by defendant Dr. Kwan in his earlier motion to strike, which the court denied. Regardless, plaintiff Kifle contends attorney’s fees are properly prayed for and his right thereto ought to be preserved in the event he *subsequently* retains counsel and he prevails. On that point, the court agrees. Thus, Defendant Dr. Kwan’s motion to strike the prayer for attorney’s fees is DENIED.

D. INJUNCTIVE RELIEF

“The Unruh Civil Rights Act’s remedies include actual damages (as much as treble damages), a minimum statutory award of \$4,000 for each violation, and injunctive relief. (§ 52, subds. (a), (c)(3)).” (*Thurston v. Omni Hotels Management Corp.* (2021) 69 Cal.App.5th 299, 306). In its prior ruling, the court granted defendant Dr. Kwan’s motion to strike plaintiff Kifle’s request for injunctive relief on the basis that, “ ‘Injunctive relief has no application to wrongs which have been completed [citation], absent a showing that past violations will probably recur. [Citation.]’ [Citation.]” (*Madrid v. Perot Systems Corp.* (2005) 130 Cal.App.4th 440, 465). In the original complaint, the court found plaintiff Kifle did not adequately allege that past violations will probably recur.

In light of the court’s ruling above, plaintiff Kifle has not sufficiently stated a cause of action for violation of the Unruh Civil Rights Act against defendant Dr. Kwan. For that reason, any accompanying request for injunctive relief is not warranted. Accordingly, defendant Dr. Kwan’s motion to strike plaintiff Kifle’s request for injunctive relief is GRANTED

E. IRRELEVANT/ FALSE ALLEGATIONS

Finally, defendant Dr. Kwan moves to strike what he contends are irrelevant or false allegations. Plaintiff Kifle argues, in opposition, that defendant cannot be heard to complain that plaintiff’s pleading lacks factual detail and then argue for deletion of such factual detail when added.

Irrelevant matter includes “immaterial allegations.” (Code Civ. Proc., §431.10, subd. (c)). “An immaterial allegation in a pleading is any of the following: (1) An allegation that is not essential to the statement of a claim or defense; (2) An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense; (3) A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.” (Code Civ. Proc., §431.10, subd. (b)).

In this instance, the court agrees that plaintiff Kifle’s 346-page FAC includes numerous allegations that are not essential to the statement of his claim(s) and/or not pertinent or supported by otherwise sufficient claim(s).

VI. CONCLUSION

Based on the foregoing, the Court ORDERS as follows:

LINE # 5

DEFENDANT DR. KWAN’S DEMURRER TO PLAINTIFF’S FAC

Defendant Dr. Kwan’s demurrer to the first cause of action for general negligence of plaintiff Kifle’s FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for general negligence, i.e., the cause of action is barred by the applicable statute of limitations, is SUSTAINED WITHOUT LEAVE TO AMEND.

Defendant Dr. Kwan’s demurrer to the second cause of action for fraud/ intentional misrepresentation of plaintiff Kifle’s FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for fraud/ intentional misrepresentation, i.e., the cause of action is barred by the applicable statute of limitations, is SUSTAINED WITHOUT LEAVE TO AMEND.

Defendant Kwon’s Motion to Strike the third cause of action for fraudulent concealment; fourth cause of action for constructive fraud; and fifth cause of action for negligence misrepresentation, the motion to strike are GRANTED

Defendant Dr. Kwan’s demurrer to the sixth cause of action for Unruh Civil Rights Act of plaintiff Kifle’s FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for violation of the Unruh Civil Rights Act is SUSTAINED with 10 days’ leave to amend.

Defendant Dr. Kwan’s demurrer to the seventh cause of action for violation of DPA, Civil Code sections 54, 54.1, and 54.3 on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for violation of the California Disabled Persons Act is OVERRULED.

Consequently, defendant Dr. Kwan’s demurrer to the eighth cause of action for international infliction of emotional distress of plaintiff Kifle’s FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for intentional infliction of emotional distress is OVERRULED.

LINE # 7

DEFENDANT HOSPITAL AND DISTRICT’S JOINDER IN DEFENDANT KWAN’S DEMURRER

Although different causes of action are asserted against defendants Hospital and District, there are causes of action against defendants Hospital and District which overlap those asserted against defendant Dr. Kwan. Insofar as those causes of action do overlap, the court’s rulings above with regard to defendant Dr. Kwan’s demurrer shall also apply to defendants Hospital and District’s joinder in defendant Dr. Kwan’s demurrer with one exception. On the cause of action for violation of Unruh Civil Rights Act, defendants Hospital and District’s demurrer is OVERRULED.

Defendant District's joinder in Defendant Kwan's demurer to the first cause of action for general negligence of plaintiff Kifle's FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for general negligence, i.e., the cause of action is barred by the applicable statute of limitations, is SUSTAINED WITHOUT LEAVE TO AMEND.

Defendant District's joinder in Defendant Kwan's demurer to the second cause of action for fraud/ intentional misrepresentation of plaintiff Kifle's FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for fraud/ intentional misrepresentation, i.e., the cause of action is barred by the applicable statute of limitations, is SUSTAINED WITHOUT LEAVE TO AMEND.

Defendant Kwon's Motion to Strike the third cause of action for fraudulent concealment; fourth cause of action for constructive fraud; and fifth cause of action for negligence misrepresentation, the motion to strike are GRANTED.

Defendant District's joinder in Defendant Kwan's demurer to the sixth cause of action for Unruh Civil Rights Act of plaintiff Kifle's FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for violation of the Unruh Civil Rights Act is OVERRULED.

Defendant District's joinder in Defendant Kwan's demurer to the seventh cause of action for violation of DPA, Civil Code sections 54, 54.1, and 54.3 on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for violation of the California Disabled Persons Act is OVERRULED.

Defendant District's joinder in Defendant Kwan's demurer to the eighth cause of action for international infliction of emotional distress of plaintiff Kifle's FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for intentional infliction of emotional distress is OVERRULED.

LINE # 6

DEFENDANT DR. KWAN'S MOTION TO STRIKE

Defendant Dr. Kwan's motion to strike portions of plaintiff Kifle's complaint: third cause of action for fraudulent concealment; fourth cause of action for constructive fraud; and fifth cause of action for negligence misrepresentation (*supra*, section V(A)); injunctive relief (*supra*, section V(D)); and irrelevant/ false allegations (*supra*, section V(E)) are GRANTED.

Defendant Dr. Kwon's motion to strike punitive damages (*supra*, section V(B) and attorney's fees (*supra*, section V(C)) are DENIED.

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